

23STCV04518 23STCV04518

County: los-angeles

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Case Number: 23STCV04518 Hearing Date: September 10, 2026 Dept: 45

ELINOR MURPHY VS PELV-ICE LLC, ET AL.

MOTION FOR ATTORNEYS' FEES AND COSTS PURSUANT TO CALIFORNIA
LABOR CODE SECTIONS 1102.5(J), 226, AND 218.5

Date of Hearing: September

10, 2026 Trial

Date: None

set

Department: 529 Case No.: 23STCV04518

Moving Party: Plaintiff

Elinor Murphy

Responding Party: Defendant

Jill Bigelow

BACKGROUND

On March 2, 2023, Plaintiff Elinor

Murphy filed a complaint against PELV-ICE LLC and Jill Bigelow for breach of oral contract, violation of wage and hour laws, violation of Labor Code 2751, violation of Labor Code 226(a), wrongful termination in violation of public retaliation, retaliation, and violation of Labor Code §201 and for statutory penalties under Labor Code §203.

[TENTATIVE] RULING

Plaintiff

Elinor Murphy's Motion for Attorneys' Fees and Costs Pursuant to California Labor Code Sections 1102.5(j), 226, and 218.5 is GRANTED IN THE REDUCED AMOUNT.

REQUEST FOR JUDICIAL NOTICE

Defendant

Jill Bigelow requests this court take judicial notice of the official attorney licensee record published by The State Bar of California for Daniela Mares, State Bar License No. 34973. Defendant Bigelow requests notice of when Ms. Mares became an attorney as Defendant argues nine hours of attorney billed time were billed before Ms. Mares became licensed.

In

opposition, Plaintiff argues time spent by law clerks, billed at market rate, may be included in a fee award where the prevailing practice in the community is for attorneys to bill separately for law clerk services. (Missouri v. Jenkins by Agyei (1989) 491 U.S. 274, 285-288.) However, Plaintiff withdraws the \$500 attorney rate as to those 9.00 hours and asks instead that they be compensated as post-bar law clerk time at \$300 per hour, a reduction of \$1,800.00.

The court

GRANTS the request for judicial notice. As discussed further below, the court will reduce the 9.00 hours to \$300/hr.

DISCUSSION

Plaintiff Elinor Murphy moves the court for an order awarding attorney fees and costs to Plaintiff as the prevailing party. Plaintiff seeks the full amount of reasonable fees and costs, \$74,514.81, against Defendants Pelv-Ice LLC and Jill Bigelow, jointly and severally.

Calculation of attorney fees begins with the lodestar approach in which the court fixes the lodestar at "the number of hours reasonably expended multiplied by the reasonable hourly rate." (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004, quoting Copeland v. Marshall (D.C. Cir. 1980) 641 F.2d 880, 891.) "California courts have consistently held

that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (Ibid.) "The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The factors to be considered include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case." (EnPalm, LLC v. Teitler (2008) 162 Cal.App.4th 770, 774.)

Plaintiff seeks \$74,514.81 in reasonable attorney fees and costs as the prevailing party in her claim against Defendants Pelv-Ice LLC and Jill Bigelow, jointly and severally. This is based on a total of 48.25 hours of time for lead counsel attorney Marina Kats Fraigun at an hourly rate of \$950 per hour (\$45,837.50), 51.50 hours of time for associate attorney Daniela Mares at an hourly rate of \$500 per hour (\$25,750.00), 13.00 hours of paralegal time at \$150 per hour (\$1,950.00), and costs in the amount of \$977.31, all totaling \$74,514.81.

Defendant Jill Bigelow opposes the motion on the grounds any award should be limited to the fees reasonably incurred on the single violation of section 226(c), at rates supported by evidence, and the \$977.31 in costs denied. The Final Judgment ordered \$46,000.00 against Pelv-Ice, LLC for violation of Labor Code Sections 98.6 and 1102.5; \$750.00 against Pelv-Ice, LLC for violation of Labor Code 226(c); \$3,441.00 for breach of oral agreement to pay commissions against Pelv-Ice, LLC; and \$750.00 for violation of Labor Code 226(c) against Defendant Bigelow. The Final Judgment ordered costs and attorney fees against both Defendants, jointly and severally. Because Defendant Bigelow was found liable for only a single penalty, Defendant contends that requiring her to pay 99 times her share—or 112.75 hours of billing—for that single penalty, is unreasonable.

The court agrees the attorney fees and costs should be apportioned based on Defendant Bigelow's liability. "Apportionment may certainly be appropriate where there is more than one defendant." (Californians for Responsible Toxics Management v. Kizer (1989) 211 Cal.App.3d 961, 976.) In this instance case, Defendant Bigelow has been found personally liable on a single violation of Labor Code section 226(c) and in light of equitable

considerations, the court agrees Defendants should not be jointly and severally liable for the entire amount. The actual time spent addressing the claim on which Bigelow was found liable was only a small fraction of the time spent on this case.

Most of the time was spent on unrelated claims by plaintiff that she was entitled to higher pay, commissions earned and that she had been retaliated against for complaining of labor code violations – claims on which she did not prevail as to Bigelow.

Applying the lodestar method, the court finds the billing rate for plaintiff's two attorneys to be reasonable given their experience, skills and community rates.

The court notes Defendant Bigelow also argues against the clerical work billed at paralegal rates, \$4,000.00 spent on preparing the instant motion, and duplicate/block billing. The court finds the paralegal entries and billing rates reasonable. The court does agree, however, that the 10 hours spent on an attorney fee motion is unreasonable and the court reduces the amount to \$3,000.00. As for the hearings attended by both attorney Mares and attorney Faigun, the court finds there was duplicate billing, which was not reasonable given this was a simple case against a defaulted defendant and a self-represented individual. The court therefore removes the time billed for the second counsel, Daniela Mares, on the following dates: May 28, 2024, October 6, 2025, October 24, 2025, December 5, 2025, December 15, 2025, December 16, 2025, May 6, 2026, and June 2, 2026 for a reduction of \$9000. On most of those dates, two counsel appeared for plaintiff on LA Court Connect, when it would have been reasonable to have only one attend under ordinary billing practices. As for the trial itself, attorney Faigun was lead counsel and Mares did not play an appreciable role.

The court does not reduce the amount of costs sought or the amount sought against Defendant Bigelow.

Based on the foregoing, the court reduces the amount of attorney fees to \$61,737.50, reflecting the \$10,800 reduction as to Mares' fees and \$1,000 reduction based on preparing the instant motion. The court also apportions only 15% of the attorney fees to Defendant Bigelow for the single claim on which she lost, or \$9260.62, and joint and severally, the costs of \$977.31.

Accordingly,

plaintiff is entitled to a judgment jointly and severally of \$9260.62 in fees

and \$977.31 in costs against Bigelow and Pelv-Ice. In addition, she is entitled to a judgment against Pelv-Ice of \$52,476.88 for additional fees.